

**BEFORE THE
FEDERAL MARITIME COMMISSION**

**MARIE CAREW d/b/a/ HOLIDAY SHIPPING,
Complainant,**

Vs.

**MAERSK LINE A/S,
JOHN DOES,
Respondents.**

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DOCKET #:

20-17

COMPLAINANT’S RESPONSE TO MAERSK LINE A/S’ MOTION

COMES NOW Marie Carew d/b/a/ Holiday Shipping, Complainant, and files the herein response to Respondent’s Motion to Dismiss the Complaint, and further says:

I. Introduction

Respondent, Maersk Line, filed its breach of contract case under Rule 9(h) of the Federal Rules of Civil Procedure and the Court’s admiralty and maritime and federal question jurisdiction. Maersk alleged in its Complaint that herein Complainant owed demurrage and detention charges on seventy-nine (79) containers that Maersk shipped over several years. Maersk has, however, held on to four (4) of the containers, in violation of 46 USC § 41102(c) and 46 CFR § 545.4(d). Subsequent to the herein Complaint before the Commission and on November 16, 2020, Maersk filed its Amended Complaint before Honorable Judge Cronan of the Federal District Court of the Southern District of New York (SDNY), requesting to dismiss its claims against two (2) of the containers that are currently before the Commission.¹ The Complainant, however, objected to Maersk’s Motion to Amend its Complaint to dismiss its breach of contract claims merely against two of the four containers that Maersk nevertheless refuses to release. See Exhibit A, Marie Carew’s Affidavit. Equally more, before the SDNY is Complainant’s new Motion to Dismiss Maersk’s Complaint in its entirety and/or transfer such case to the Federal District Court of the

¹ In Respondent’s Exhibit E, four (4) of the bills of lading, to wit: B/L 965477262; 96544009; 965751148; and 965885829.

Northern District of Georgia. See Exhibit B. Judge Cronan has yet to rule on Complainant's motion and Maersk's motion to amend its Complaint.

II. Facts

At different times, Maersk shipped four containers under the following bills of lading: B/L 965477262; 96544009; 965751148; and 965885829. See FMC's Exhibit C, submitted by Maersk with its motion. The Complainant paid the freight on each of the containers. However, Maersk retains and refuses to deliver the consignments to the Consignees and in violation of 46 USC § 41102(c) and 46 CFR § 545.4(d).

While Maersk states its intention to dismiss its contract claims against the four containers, its Amended Complaint in the SDNY merely dismisses claims against two consignments. See Exhibit C. But even if Maersk was to dismiss its contract claims against the four consignments, Maersk has not indicated if it would release the consignments to the Consignees at the different destination ports.

III. Argument

SDNY has yet to rule on Maersk's request to amend its Complaint. Even if the SDNY were to grant Maersk's request to Amend its Complaint, such would apply to only two of the consignments. More, if the SDNY grants Maersk's request, its continued refusal to deliver the four (4) consignments to the Consignees denies Complainant adequate relief. Even more, Complainant believes the SDNY lacks total jurisdiction over Complainant and that the Commission has exclusive jurisdiction over the matters between the parties. The Commission is the only body that could award adequate relief in these cases. And, as such, Complainant believes Maersk's Motion to Dismiss the herein action before the Commission is not only premature; it is dubious.

Respectfully submitted this 12th day of January, 2021.

/s/ Yinka Omole
Yinka T. Omole, Esquire
Attorney for Complainant

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Atlanta, Georgia 30316
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**BEFORE THE
FEDERAL MARITIME COMMISSION**

**MARIE CAREW d/b/a/ HOLIDAY SHIPPING,
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Vs.

**MAERSK LINE A/S,
JOHN DOES,
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* **DOCKET #:**
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CERTIFICATE OF SERVICE

This is to certify that I have this day served upon all parties to this action the foregoing Complainant's Response to Maersk Line A/S Motion by electronically sending the original to the Federal Maritime Commission and copying other counsels of record.

Garth S. Wolfson, Esquire
Mahoney & Keane, LLP
40 Worth Street, Tenth Floor
New York, New York 10013
E-Mail: Gwolfson@mahoneykeane.com

This the 12th day of January, 2021.

/s/ Yinka Omole
Yinka T. Omole, Esq.
Attorney for Complainant

State Bar No. 553795
Post Office Box 18339
Atlanta, Georgia 30316
(404) 624-3011
yfirm@gmail.com

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AFFIDAVIT OF MARIE CAREW

Personally appeared before the undersigned attesting officer, duly authorized by law to administer oaths, Marie Carew, who being duly sworn, on oath states that she is over the age of eighteen (18) years, and has personal knowledge of the facts set forth in this Affidavit or such knowledge is as stated herein, and makes this Affidavit for use as evidence for any and all matters in the above-styled action and all purposes authorized by law.

1. My name is Marie Carew, and I am the Marie Carew named in the herein lawsuit and as the Complainant;
2. I manage and direct all activities of Holiday Shipping, at all times, and have reviewed all the documents maintained in the course of business by Holiday Shipping and all other affiliated businesses;
3. At all times, I operated as an ocean freight forwarder—ocean transportation intermediary (OTI) and appropriately licensed by the Federal Maritime Commission (FMC);
4. At different times, I acted as the freight forwarder on four (4) consignments, shipped through Maersk Line A/S under the following bills of lading: B/L 965477262; 96544009; 965751148; and 965885829;
5. B/L 965477262 is for the container tagged SUDU6808042, and contains among others, 2003 Mercedes Benz C230; 2008 Lexus RX350; 2006 Toyota Highlander; and 2008 VW Passat;

6. B/L 96544009 is for the container tagged MSKU8180603, and contains among others, a used 2005 Toyota 4 Runner; 2005 Toyota 4 Runner; and 2004 Toyota Sienna;
7. B/L 965751148 is for the container tagged MSKU8445214, and contains among others, used 2003 Honda Accord; 2005 Ford Escape; and 2003 Acura MDX;
8. B/L 965885829 is for the container tagged MSKU6064475, and contains among others, 2003 Toyota Sequoia; 2007 Nissan Murano; and 2003 Toyota RAV4;
9. Maersk Line A/S remains in custody of each of the herein listed consignments and refuses to release them to the appropriate Consignees.

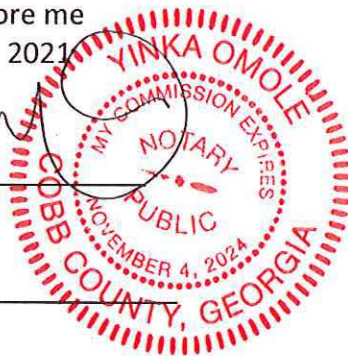
FURTHER, AFFIANT SAITH NAUGHT

Marie Carew
Marie Carew

Sworn to and subscribed before me
This 12th day of January, 2021

[Signature]
Notary Public

My commission expires: _____



UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

MAERSK LINE A/S,

Plaintiff,

-against-

MARIE S. CAREW t/a HOLIDAY SHIPPING,

Defendant.

19 Civ. 4870

COMPLAINT

PLEASE TAKE NOTICE that Plaintiff, MAERSK LINE A/S (“MAERSK”), by its attorneys, Mahoney & Keane, LLP, as and for a Complaint against Defendant, MARIE S. CAREW t/a HOLIDAY SHIPPING (“HOLIDAY”), alleges, upon information and belief, as follows:

1. This is a claim within the meaning of Rule 9(h) of the Federal Rules of Civil Procedure and falls under the Court’s admiralty and maritime and federal question jurisdiction pursuant to 28 U.S.C. §§ 1331 and 1333 in that it involves a claim for the breach of a maritime contract.

2. Plaintiff, MAERSK, is a corporation duly organized and existing pursuant to the laws of foreign country, with offices and place of business located at 50 Esplaneden, DK-1098, Copenhagen K, Denmark.

3. Defendant, HOLIDAY, is sole proprietorship licensed with the Federal Maritime Commission as a non-vessel owning common carrier and ocean transportation intermediary with offices and a place of business located at 1153 Willingham Drive, East Point, GA 30344.

4. The United States District Court for the Southern District of New York is the proper venue for this action pursuant to the Law and Jurisdiction clause contained in the governing Bills of Lading.

5. Plaintiff sues on its own behalf and as agent and trustee on behalf of any other party who may now have or hereinafter acquire an interest in this action.

AS AND FOR A FIRST CAUSE OF ACTION

6. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "5" as if specifically set forth herein at length.

7. On or about January of 2015, February through May of 2016, December of 2016, March through April of 2017, August of 2017, October of 2017, March through November of 2018, January of 2019, and March of 2019, and at all times relevant herein, MAERSK, as "Carrier", and HOLIDAY, as "Shipper", entered into and were parties to bills of lading numbered 566942411, 576254394, 955061776, 955153015, 955728620, 955824174, 955831738, 956105215, 956209532, 956737002, 956751241, 957569046, 957569049, 957849148, 958115327, 958348126, 958632718, 958647967, 958706912, 958706920, 958706950, 958961505, 959064153, 959298172, 959384493, 959384639, 959404137, 959417057, 959533182, 959666400, 960011124, 960739844, 960930389, 961519364, 961640116, 961748325, 962479448, 963694372, 963721565, 963741113, 963807713, 964047680, 964354949, 964510571, 964671670, 964765517, 964830164, 964841064, 964897195, 964948943, 965003598, 965069141, 965077376, 965121979, 965389181, 965448503, 965477262, 965477262, 965485698, 965544009, 965640166, 965640202, 965690272, 965690350, 965751148, 965751148, 965786726, 965786728, 965796238, 965885826, 965885829, 965965069, 965975136, 965975140, 966009481, 966017145, 966078843, 966088619, and 966088624 for the ocean carriage of containerized cargoes of motor vehicles, auto parts, personal effects, household, and used machinery and other goods from United States ports to African ports.

8. Plaintiff duly performed all duties and obligations required to be performed by Plaintiff in connection with the goods.

9. Defendant wrongfully, willfully, negligently and/or fraudulently breached the terms of the subject agreements by, inter alia, failing to pay for basic ocean freight, detention, demurrage, per diem charges, inland haulage, low Sulphur surcharges, congestion fees, shifting expenses, bunker fees, port dues, documentation fees, and other associated and incidental customs duties, fees, taxes, costs, charges, and expenses accrued on the containers, all as duly invoiced by Plaintiff to Defendant.

10. As a result of Defendant's breach of the agreements, Plaintiff has incurred, and will continue to incur, costs and expenses for which Defendant is liable under the terms of the governing contracts and at law.

11. Plaintiff has placed Defendant on notice of its claim that Defendant has breached the subject agreements and violated Plaintiff's rights under the law.

12. Despite Plaintiff's repeated demands, Defendant has failed to pay the Plaintiffs' damages due and owing under the agreements and at law.

13. By reason of the foregoing, Plaintiff has sustained damages in the amount of \$173,025.74, together with interest, costs, fees, including reasonable attorneys' fees, and expenses.

AS AND FOR A SECOND CAUSE OF ACTION

14. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "13" as if specifically set forth herein at length.

15. Defendant has an account stated with Plaintiff.

16. By reason of the foregoing, Plaintiff has sustained damages in the amount of \$173,025.74, together with interest, costs, fees, including reasonable attorneys' fees, and expenses.

AS AND FOR A THIRD CAUSE OF ACTION

17. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "16" as if specifically set forth herein at length.

18. Defendant has been unjustly enriched at Plaintiff's expense, and Plaintiff is entitled to restitution from Defendant in the amount of \$173,025.74, together with interest, costs, fees, including reasonable attorneys' fees, and expenses.

AS AND FOR A FOURTH CAUSE OF ACTION

19. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "18" as if specifically set forth herein at length.

20. Plaintiff is due from Defendant the quantum meruit of Plaintiff's services.

WHEREFORE, Plaintiffs pray that judgment be entered in favor of Plaintiffs for an amount exceeding \$173,025.74, together with interest, costs, fees, including reasonable attorneys' fees, and disbursements; that Court process be issued against the Defendant; and that Plaintiffs be granted such other and further relief as the Court may deem just and proper.

Dated: New York, New York
May 24, 2019

MAHONEY & KEANE, LLP
Attorneys for Plaintiff

By: s/ Garth S. Wolfson
Edward A. Keane
Garth S. Wolfson
61 Broadway, Suite 905
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(212) 385-1422

**IN THE UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK**

**MAERSK LINE A/S,
Plaintiff,**

Vs.

**MARIE S. CAREW D/B/A
HOLIDAY SHIPPING,
Defendant.**

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19 Civ. 4870 (JPC)

MOTION TO DISMISS PURSUANT TO RULE 12(b)

COMES NOW Marie Carew d/b/a/ Holiday Shipping, and restates her Motion to Dismiss the Complaint of Maersk Line A/S, Plaintiff, for lack of personal jurisdiction, improper venue, and forum non-convenience, and further says:

I. Introduction

Plaintiff, Maersk Line, chose this forum—the Southern District of New York, for litigation advantages, and it is abusive. Plaintiff, an ocean carrier, entered into a service agreement with Defendant, a freight forwarder, and the parties spelt out their agreement in a Service Contract. The Service Contract Terms spells out a venue for litigation, and it is not the Southern District of New York (SDNY). Again, Plaintiff, an Ocean Carrier, is headquartered in Copenhagen K, Denmark, and maintains an office in Atlanta, Georgia. Defendant, who is an Ocean Transportation Intermediary (O.T.I.) or, more specifically, a freight forwarder, operates solely from the City of Atlanta, Georgia. Defendant has never stepped or transacted any business in New York or ever mustered the illusion of coming to New York. Plaintiff

chose this forum that does not have any nexus to the relationships between parties or the cause of action to punish and abuse this Defendant.

The Federal Maritime Commission (hereinafter “the Commission”) regulates all common carriers and others involved in the ocean-borne businesses and regulates the business between herein parties. 46 U.S.C. §§ 40101-41309; 46 U.S.C. §§ 42101-42109; 46 U.S.C. §§ 42301-42307; 46 U.S.C. §§ 44101-44106; and other applicable statutes. Under well established and long-held admiralty and maritime law, a bill of lading is a mere receipt, especially when, as here, there exists a Service Contract Terms.

II. Facts

Plaintiff, Maersk Line, is an Ocean Carrier, and as alleged, with offices and place of business located at 50 Esplaneden, DK-1098, Copenhagen K, Denmark. See Plaintiff’s Compl. ¶ 1. On the other hand, Defendant is an ocean transportation intermediary (O.T.I.), licensed by the Commission to operate in the United States as an ocean freight forwarder and non-vessel operating common carrier (NVOCC)¹. 46 CFR § 515.2(m)(1). See Affd. of Marie Carew ¶ 5. Defendant operates out of Atlanta, Georgia, and has never made contact with the State of New York. Id. at 4.

The Commission retains jurisdiction over the parties’ activities. 46 U.S.C. § 40301. Since 2006, the parties to this lawsuit have enjoyed a mutually beneficial business relationship governed by a Service Contract, attached as Exhibit “A.”² 46

¹ Both OFFs and NVOCCs are intermediaries between (i) shippers, who seek to export cargo, and (ii) ocean carriers, who physically carry the cargo on their vessels. Landstar Express America, Inc. v. Federal Maritime Commission, 569 F.3d 493 (D.C. Cir. 2009); See NLRB v. Int’l Longshoremen’s Ass’n, 447 U.S. 490, 496 n. 8, 100 S.Ct. 2305, 65 L.Ed.2d 289 (1980) (NVOCCs); Nat’l Customs Brokers & Forwarders Ass’n of Am., Inc. (NCBFAA) v. United States, 883 F.2d 93, 94-95 (D.C.Cir.1989);

² <https://www.fmc.gov/resources-services/how-to-file-service-contracts/>

U.S.C. § 40502(b)(1). Parties initiated their business relationship in Georgia, as both parties had offices in the City of Atlanta. See Affidavit of Marie Carew ¶6. The agreement contains a forum selection clause, which is not the SDNY.³

Plaintiff asserts the herein contract claim under the guise of the venue in its bill of lading and designates its action under Rule 9(h). See Plaintiff's Compl. ¶ 1. However, seventy-nine (79) bills of lading that Plaintiff issued over many years demonstrate a business relationship pattern between the parties, for which the Service Contract Terms bind. The Commission is the appropriate agency to resolve any dispute concerning seventy-nine (79) outstanding invoices for demurrage and detention fees assessed due to the government's inspection in this case. And even if the Plaintiff was to invoke the Federal Court's jurisdiction, the United States District Court in Northern Georgia is the sole and appropriate Court with personal jurisdiction and venue over the Defendant.

III. Argument

A district court retains original jurisdiction, exclusive of the States' courts, over admiralty or maritime cases. 28 U.S.C. § 1333. And the general venue provision under the law does not apply to admiralty or maritime cases. 28 U.S.C. § 1390(b). Fed.R.Civ.P. 82 controls venue and jurisdiction in admiralty or maritime cases.

³ Service Contract Terms ¶ 11: Law and Jurisdiction. "...disputes arising hereunder shall be determined by the English High Court of Justice in London to the exclusion of the jurisdiction of the courts of another country. Alternatively and at the Carrier's sole option, the Carrier may commence proceedings against Merchant at a competent court of a place of business of the Merchant."

I. This Defendant is not subject to the jurisdiction or venue of this Court

Under Rule 82, courts have developed special venue rules for admiralty cases. Societe Commerciale de Transports Transatlantiques v. S.S. "African Mercury", 366 F. Supp. 1347, 1349 (S.D.N.Y.1973). Specifically, "venue of admiralty actions in personam is in any district where the respondent is found, and service of process is made on him, or in any district where respondent's property or credits are attached." 1 Moore's Federal Practice ¶ 0.14413.-1 (2d Ed. 1986), Peitsch v. Regency Cruises Inc., 664 F. Supp. 362 (ND Ill. 1987).

Here, Defendant operates solely out of East Point, Georgia. She does not solicit or ever retained a business contact in New York. Defendant does not have any property or credits in New York that process or judgment could attach. Plaintiff, on the other hand, a foreign corporation, does business in Georgia. The Plaintiff, a foreign entity, maintained an office in Georgia when the parties entered into their business relationship. The Plaintiff retains no special or particular interest in New York. There is nothing under the long-arm statute of this State or any other court-developed rule in admiralty and maritime law that subject this Defendant to this Court's jurisdiction.

II. The Defendant is outside the territorial limit of this Court for service

Equally, courts have merged the analysis of venue and personal jurisdiction under admiralty practices, such that an action under Rule 9(h) is proper where the Court could obtain personal jurisdiction over the Defendant. Peitsch v. Regency Cruises Inc., 664 F. Supp. 362 (*citing* Bartlett-Collins Co. v. Surinam Navigation Co., 381 F.2d 546 (10th Cir. 1967)). Under Fed.R.Civ.P. 4(k), Defendant reiterates that she

is not subject to the general jurisdiction of this Court, and no statute authorizes service upon her within this State to subject her to the jurisdiction of this Court.

III. The Plaintiff has failed to establish that jurisdiction or venue is proper against Defendant in this Court

Plaintiff retains the burden to show the existence of personal jurisdiction and that venue is proper in this Court, and Plaintiff has failed to discharge its obligation. Montalbano v. Easco Hand Tools, Inc., 766 F.2d 737 (2nd Cir. 1985). However, Plaintiff points to its bill of lading to suggest that the parties to this action negotiated venue, and such article subjects Defendant to jurisdiction and venue in the SDNY.

a. The Service Contract Terms and not the bill of lading evidenced the only agreement between parties

Parties have enjoyed a mutually beneficial business relationship governed by a Service Contract since 2006. The regulation of the Commission mandates that Plaintiff file such Service Contract as the official agreement between parties. 46 U.S.C. § 40502(b)(1). Plaintiff has always filed this Service Contract. See Affidavit of Marie Carew ¶16. The Service Contract contains a forum selection clause, which is not the SDNY.⁴ Exhibit A-1. Where the parties' relationship, as here, is governed by a separate contract, that contract acts as the contract of carriage and bills of lading are mere receipts. St. Paul Travelers Ins. Co. v. M/V Madame Butterfly, 700 F.Supp.2d 496 (S.D. N.Y. 2010). Each of Plaintiff's seventy-nine (79) bills of lading are

⁴ Service Contract Terms ¶ 11: Law and Jurisdiction. "...disputes arising hereunder shall be determined by the English High Court of Justice in London to the exclusion of the jurisdiction of the courts of another country. Alternatively and at the Carrier's sole option, the Carrier may commence proceedings against Merchant at a competent court of a place of business of the Merchant."

mere receipts, and the number of those receipts would not convert them from mere receipts.

Even more, Plaintiff does not issue its bill of lading until it loads and sails with consignments, which further confirms that Plaintiff never intended the bill of lading as a contract of agreement between parties. See Affidavit of Marie Carew ¶10. And in the limited circumstances that a bill of lading bears the only agreement between parties, courts have, nevertheless, treated the bills of lading as contracts of adhesion between ocean carriers and shippers. Monica Textile Corp. v. S.S. Tana, 952 F.2d 636, 643 (2d Cir.1991) (holding that “every shipper knows ... bills of lading are contracts of adhesion ambiguities in which must be resolved against the carrier” (internal quotation marks omitted)). The Terms of Carriage in a bill of lading was not made in an arms-length negotiation by experienced and sophisticated parties. New Moon Shipping Co., Ltd. v. M.A.N. B

IV. Even if the Court finds the forum-selection clause in the Plaintiff’s Terms of Carriage controlling, the Court must transfer the case to Northern District of Georgia for forum non-conveniens

“The doctrine of *forum non-conveniens* allows a court to dismiss an action ‘even if the court is a permissible venue with proper jurisdiction over the claim.’” Quenoy v. Am. Univ. of Beirut, 18 Civ. 6962 (*quoting* LaSala v. Bank of Cyprus Pub. Co. Ltd., 510 F. Supp. 2d 246, 254 (SDNY, 2007)). And a court retains a broad discretion whether to grant or deny a motion to dismiss for *forum non-conveniens*. Even, when parties designate a forum, and the Court determines that the forum selection is valid, the Court, nevertheless, must consider if public interest does not counsel against the enforcement of the forum. Atlantic Marine Const. Co., Inc. v. U.S. Dist. Court for Western Dist. of Tex., 571 US 49. Equally, the party challenging the enforcement must be permitted to show that the enforcement would be

unreasonable or unjust, or that the clause was invalid for reasons such as fraud or overreaching. Quenoy, (*quoting Phillips v. Audio Active Ltd.*, 494 F. 3d 378, 383 (2d Cir. 2007)).

Again, neither of the parties to this lawsuit resides in the State of New York. Each of the consignees or the representative of the consignees associated with the bills of lading referenced in Plaintiff's Complaint, should Defendant interpleads these individuals, resides in and around the City of Atlanta, Georgia or did businesses around the State. See Affd. of Marie Carew ¶ 17. More, Plaintiff knew each of the consignees and dealt directly with them at the destination port by voluntarily releasing the freight without Defendant's instruction. Equally more, the demurrage and detention charges that Plaintiff now attempts to collect are charges from the Georgia Ports Authority and other independent terminal port operators. Each of these agencies or individuals resides in Georgia. It will be unreasonable and unjust to bring the Georgia Ports Authority, other independent terminal port operators, and the seventy-nine (79) consignees to this Court in New York. As such, this Court must grant the Defendant's motion to dismiss for *forum non-conveniens*. Phillips v. Audio Active Ltd., 494 F. 3d 378.

IV. Conclusion

Defendant, a Georgia resident, entered into a business relationship with Plaintiff more than fourteen (14) years ago. Defendant has never maintained any nexus with the State of New York, nor has she maintained contact with the State under any of Plaintiff's bill of lading. Parties have never loaded or negotiated any forwarding contract in New York. And, Defendant does not have any property or credits that Plaintiff could attach in the State. Plaintiff, a foreign company, does not have any skin in the State, either.

The bills of lading that Plaintiff issued when and after its ships are lading and on the high seas could not controvert the venue that exists under the parties' Service Contract Terms.

Defendant requests that the Court dismiss this action for improper venue. In the alternative, the Court may transfer the case to the Northern District of Georgia or the Federal Maritime Commission.

Respectfully submitted,

Marie Carew

Marie Carew d/b/a/ Holiday Shipping
Assisted by the Law Office of Yinka Omole
Not licensed to practice law in New York

1153 Willingham Drive
East Point, GA. 30344
(404) 219-1943

IN THE UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

MAERSK LINE A/S,
Plaintiff,

Vs.

MARIE S. CAREW D/B/A
HOLIDAY SHIPPING,
Defendant.

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19 Civ. 4870 (JPC)

CERTIFICATE OF SERVICE

This is to certify that I have this day served upon all parties to this action the foregoing Motion to Dismiss Pursuant to Rule 12(b) by depositing the original with a U.S. Mail Carrier to the Court, addressed as follows:

Clerk of the Court
United States District Court
Southern District of New York
Pro Se Intake Unit
Thurgood Marshall US Courthouse
40 Foley Square
New York, NY 10007

Also, I emailed a copy to both the Court and the opposing counsel.

This the 24th day of December, 2020.

Respectfully submitted,

Marie Carew

Marie Carew d/b/a/ Holiday Shipping